Shyam Singh And Others vs Leelu And Others on 16 August, 2023

Author: Saurabh Shyam Shamshery

Bench: Saurabh Shyam Shamshery

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HIGH COURT OF JUDICATURE AT ALLAHABAD
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HIGH COURT OF JUDICATURE AT ALLAHABAD

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*** Case :- WRIT - B No. - 18154 of 1998 Petitioner :- Shyam Singh And Others Through :- Sri Satyendra Narayan Singh, Advocate vs. Respondent :- Leelu And Others Through :- Sri A.C. Nishad, Standing Counsel Sri H.M.B Sinha, Advocate CORAM : HON'BLE SAURABH SHYAM SHAMSHERY, JUDGE

1. Parties are litigating since 1971 and they are before this Court in their second round of litigation since 1998 and after 25 years the writ petition is finally are decided.

2. Crux of Dispute

(i) Parties to dispute admittedly belonged to common ancestor namely Sarjeet who has two sons namely Saman and Hira.

(ii) Petitioners and respondents are from Saman's two sons namely Shiv Sahai and Munshi. Some respondents are from Hira, the other son of Sarjeet.

(iii) Admitted pedigree is as follow :-

Sarjit Saman Hira Sheo Bux Tule Ram Bholey Ram Gogal Gopal Shivsahai Sheoram Ganga Sahai Shiv Charan Munshi @ x x Sheobaran Tika Ram Risal Sohan Ram Lal Hari Chand Pat Ram Ram Phal Bhondu Ram Swaroop Dheer Chand x Sahaj Ram Shyam Singh Harbal Hargolal Lakhi Chand Leelu Jaipal Jeevan

(iv) Present dispute is related only to land bearing Khata No. 261, 519 and 520 and dispute in regard to Khata No.292 stood finalized by a judgment dated 17.12.1982 passed by High Court.

(v) Petitioners and now their legal heirs have set up their claim that land in dispute was their personal Sir and Khudkast, whereas according to respondents and their legal heirs, land in dispute was an ancestral land.

3. First Round of Litigation:-

(i) After consolidation proceedings commenced, counter objections were filed by respective parties. The Consolidation Officer by an order dated 15.09.1971 has rejected objections of the respondents and accepted claim of the petitioners.

(ii) The appeal thereof and a revision thereof filed by respondents were dismissed by respective orders dated 14.12.1997 and 20.09.1972 passed by Assistant Settlement officer of Consolidation and Deputy Director of Consolidation respectively.

(iv) The respondents thereafter have approached this Court by way of filing a writ petition bearing No.598 of 1973 which was allowed by an order dated 26.11.1982 and impugned order therein dated 20.09.1972 was set aside and matter was remitted to Deputy Director of Consolidation to decide afresh, keeping in view of observation and direction made in the order.

(v) The relevant observations and directions passed by High Court in above referred judgment and order are as follows :-

" I find that the revisional court and the appellate authority have ignored the effect of oral evidence in a very perfunctory manner. When the co-sharers give statement to the effect that the disputed property is ancestral, its impact on the claim of the petitioners should have been examined in greater detail. In the compromise of the year 1947, the petitioners have been recognized as co-sharers in Khewat Nos. 13 and 19 and it has not been examined by the consolidation authorities as to whether the disputed land forms the subject matter of Khewat no. 13 and 19 or not.

To me it appears that the consolidation authorities have not examined the impor of decree in Suit No. 35 of 1947 regarding the claim of the petitioners in the disputed khatas. Before me, a number of documents have been filed and it has been demonstrated that some of the plots of Khewat Nos. 13 and 19 stood in the name of

the petitioners' father Munshi, hence I have a feeling that the revisional court should be asked to re-examine the claim of the petitioners and the documents filed before this Court can be taken back by the learned counsel for petitioners and the same can be produced before the revisional court which will appreciate the same while dealing with the claim of the petitioners in the disputed land.

A suggestion has been made that the petitioners' father and the contesting opposite party Ram Lal (opposite party no.4) had purchased Khewat in the year 1923 and thereafter the name of Ram Lal has been shown over the disputed land as Sir-holder in the year 1337-F. It also appears that some of the disputed land was in possession of the tenants. In this view of the matter, if the petitioners' father became a co-sharer in the Khewat, how Ram Lal alone acquired Sir right in the Khewat should have been specifically examined and categorically answered. Mere paper entry in the name of Ram Lal would not clothe him with exclusive right if he took possession over some of the disputed land from tenants or third persons in the capacity of being one of the properties. This aspect of the matter has completely escaped notice of the consolidation authorities, hence I think that the ends of justice would be met if the revisional court is asked to re-examine the claim of the petitioners in the light of the grounds of revision petition and the evidence which the petitioners will adduce before the revisional court. The opposite parties should get adequate opportunity to rebut the evidence filed by the petitioners before the revisional court hereafter.

I has been suggested on behalf of the contesting opposite parties that other co-sharers who have not filed objections before the consolidation authorities would also claim right in the disputed land if the matter is reopened before the revisional court. I think that the other co-sharers, who had not filed objection before the consolidation officer and who had acquiesced to the orders passed by the consolidation authorities so far, would not be permitted by the revisional court to rake up their claim when the matter is going back at the instance of the petitioners. The revisional court shall confine itself to the examination of the claim of the petitioners alone. On the materials before the revisional court, if the disputed property is proved as ancestral property, or the disputed property is shown in the name of Ram Lal in representative capacity, the petitioners' share should be determined therein.

In the fitness of things, it is proper to mention that the dispute between the parties with regard to khata no. 292, appears to have been closed because the petitioners had not pressed the revision with regard to the aforesaid khata.

In the result, the writ petition succeeds and the impugned judgment of the revisional court is hereby quashed and the revisional court directed to re-examine the claim of the petitioners in the light of the observations made above and the revisional court shall give reasonable opportunity to the parties to adduce evidence before it in support of their claims.

> The revisional court shall not permit other co-sharers to rake up their claims before it. Only the petitioners' claim is to be examined. Parties are directed to bear their own costs."

(Emphasis supplied)

4. Second Round of Litigation

(i) The Deputy Director of Consolidation, in pursuance of order passed by this Court, has instead of deciding the revision afresh, remitted the matter of Settlement Officer, Consolidation for fresh hearing.

(ii) It appears that none of parties has adduced any additional evidence before Settlement Officer, Consolidation.

(iii) The Settlement Officer, Consolidation considered the rival submission and dismissed the appeal by order dated 04.05.1989. The relevant findings are mentioned hereinafter :-

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(Emphasis supplied)

(iii) The respondents thereafter approached the Deputy Director of Consolidation by way of filing a revision petition. The revision petition was allowed by impugned order dated 29.04.1998. Relevant part of the order is mentioned hereinafter :-

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« 14 § ¡
, 3-3-18-5 § «
§ -13 19 ƒ § -35 1947 ‹
' 25-3-47 ¡ ¡ ¢ ‹ ‹ ‡
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§ 519 519 « 13 § -520 « 14 19
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§ ¡ □ – ¡ § -25-3-47 ¡
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§ -15-9-71 ¡ ¡ ¡
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(Emphasis supplied)

5. Submissions (1) Sri Satyendra Narayan Singh, learned counsel for petitioners has made following submissions -:

(a) The Deputy Director of Consolidation has erroneously placed heavy reliance on entries of register of properties i.e. the khewat, but such evidence cannot be stretched of any legal basis to hold that ancestor of Leelu, Jeevan and Jaipal (sons of Harchand) were co-sharers along with the ancestors of writ petitioners.

(b) The evidence of petitioners' side being as old as 1337 F, where petitioners were recorded as sir and khudkast holders of the land referred in khatauni 1372F, pertaining to khewat no. 13, 14 and 19 included in khata no. 261, 519 and 520 was on record, but Deputy Director of Consolidation has completely ignored it.

(c) The above entries being settlement entries carries a presumption of correction and cannot be ignored unless some contrary strong evidence is adduced but respondents have not adduced any strong evidence.

(d) The Deputy Director of Consolidation has erred in relying upon a compromise decree dated 25.03.1947 in Suit No. 35 of 1947 without appreciating that it does not disclose the details of any land i.e. land under compromise was not identifiable.

(e) The learned counsel for petitioners has read out relevant part of order dated 04.05.1989 passed by Appellate Court, referred above as well as he has also referred following paragraphs of writ petition -:

"12. That before the Consolidation Officer, even the record of settlement pertaining to settlement of Vaha Saheb i.e. of 1337 Fasli was produced. In khatauni of 1337 Fasli, Ram Lal and Pat Ram are recorded as Sir holders of khasra plot no. 613s measuring 1 bigha 6 biswa pertaining to Khewat no. 13. Ram Lal and Pat Ram are also recorded as Sir holders along with Tule Ram and Bholey Ram over the khasra plot nos. 699, 733, 734, 737, 738, 739, 740, 741, 742, 743, 786, 757, 788, 799, 800, 802, 803 and 176 measuring 19 bigha 19 biswa pertaining to Khewat no. 14. Ram Lal and Pat Ram are also shown as exclusive Sir holders in Khasra plot no. 605 Minjumla measuring 10 biswa of Khewat no. 19. Ram Lal and Pat Ram are also shown as Sir holders of khasra plot no. 694 measuring 7 biswa pertaining to Khewat no. 52. Ram Lal and Pat Ram are also shown as exclusive Khudkast holder of khasra plot no. 605 measuring 4 biswa pertaining to Khewat no. 13 and also of Khasra plot no. 605 measuring 1 biswa of Khewat no. 19. A photostat copy of Khatauni in Urdu along with true copy of its Hindi translation pertaining to 1337 Fasli is being filed herewith and marked as Annexure-2 to this writ petition."

"13. That khasra plot numbers referred to in the preceding paragraphs as recorded in khatauni 1337 Fasli, in fact, pertaining to khata nos. 261, 519 and 520 of the basic year khatauni in reference to which the dispute has been raised before the

Consolidation Officer."

"14. That the plots mentioned in Khata nos. 261, 519 and 520 in the basic year Khatauni were also recorded in the name of Ram Lal and Pat Ram in 1359 Fasli i.e. on the eve of abolition of Zamindari as their Sir and Khudkast holding. The exclusive possession of Ram Lal and Pat Ram alongwith other co-sharers but not Deep Chand and Hari Chand were also recorded in 1359 Fasli Khasras. On the basis the records, they existed on the eve of abolition of Zamindari rights were confirmed upon the recorded persons including Ram Lal and Pat Ram in regards the abolition of U.P. Zamindari Abolition and Land Reforms Act as thereafter Ram Lal and Pat Ram remain recorded in the revenue records in their individual rights as Bhumidharies and possession of all the plots in dispute pertaining to Khasra plot Khata nos. 261, 519 and 520 of the basic year Khatauni."

(2) Per contra, Sri H.M.B. Sinha, learned counsel for respondents has submitted that

(a) this Court while remitting the matter back has given specific directions and made specific observations that, in first round of litigation, effect of oral evidence and its appreciation in detail was skipped as well as effect of compromise in the suit and entry in khewat no. 13 being of co-sharer was also skipped from examination by the Deputy Director of Consolidation. It was also directed to examine whether the disputed land was subject matter of khasra no. 18 and 19 or not and liberty was granted to parties to adduce evidence also.

(b) After remit, the Appellate Court has repeated the same legal error and has not considered the observations and directions of this Court, however, the Revisional Court has taken note of observations and directions of this Court, and, considered the effect of documents on record and of compromise decree and since petitioner has not placed any other evidence, and has rightly passed the impugned order, which deserves no interference.

(c) Learned Senior Advocate has referred the consideration of Revisional Court that entries in khewat no. 14, where predecessors of respondents/revisionists were shown as co-sharer with their grandfather Munshi and petitioners with equal share of rakba 3-3-18-5.

(d) In terms of decree dated 25.03.1947 in Suit No. 35 of 1947, the respondents' father and his elder brother were accepted as co-sharer in khewat no. 13 and 19.

(e) The entries of khata no. 261, 579 and 520 in basis year were prepared on basis of khewat no. 14, 13 and 19 that respondent/revisionists' predecessors were co-sharers but due to error, their name were not recorded in khatauni as well as decree was also not entered in revenue record. The error was cured by the Revisional Court.

(f) Learned Senior Advocate has submitted that reasons given by the Revisional Court are based on revenue records, decree and sound principles of law, which does not warrant any interference under writ jurisdiction.

6. Heard counsel for the parties and perused the record as well as written submissions.

7. Consideration

(i) In the first round of litigation, this Court has set aside the orders impugned therein and remitted the matter to Deputy Director of Consolidation for fresh consideration with observation and direction, which are referred in paragraph No. 3(v) of present judgment, which were essentially in regard to consideration of entries in Khewat No.13, 18 and 19 and effect of compromise decree dated 25.03.1947 and consideration of oral evidence on record. The petitioners were permitted to adduce additional evidence, however, according to record, no additional evidence was lead.

(ii) After remit, the Deputy Director of Consolidation has further remitted the matter to Settlement Officer, Consolidation, the Appellate Court, to hear the appeal afresh. The parties to appeal were heard and the appeal was dismissed by order dated 04.05.1989. The findings thereof are mentioned in preceding paragraph No.3(iii). The Appellate Court has returned a specific finding that the details of land mentioned in decree dated 25.03.1947 were not identified and that from the entries of Khewat Nos.13 and 19 it was not clear that whether it was in pursuance of above referred decree or not. The oral evidence was considered but it was found short of prove the claim of respondents. The land in dispute was held to be ancestral.

(iii) The Revisional Court on other hand has accepted the entries in Khewat No.14 and Khewat No.13 and 19 on the face of it. The Revisional Court has also accepted the decree without returning any finding about identification of land, being part of the suit. There is no reference of any consideration of oral evidence. It appears that Revisional Court has just followed the above referred observation of this Court like a sermon and without application of mind and without returning a finding that how and under what manner, the findings returned by Appellate Court was incorrect has allowed the Revision.

(iv) The Revisional Court has not passed the impugned order in terms of factors mentioned in Section 48 of U.P. Consolidation of Holdings Act, i.e. finding in regard to satisfaction as to the regularity of the proceeding of any subordinate Authority or as to the correctness or legality or propriety of the order passed by any subordinate Authority.

(v) The outcome of above discussion is that Revisional Authority has interfered with the order passed by Appellate Authority without examination of impugned order therein, in terms of factors given in Section 48(1) of U.P. Consolidation of Holdings Act and as referred above, therefore, impugned order is unsustainable in the eyes of law and liable to be set aside.

(vi)The option now available with the Court is to remit the matter to Deputy Director of Consolidation but considering that parties are litigating since 1971 and this is the second round of litigation before this Court, therefore, I am proceeding to examine whether on basis of revenue record and oral evidence, the petitioners are able to prove or substantiate their claim and whether the finding returned by Appellate Court are justified or not.

(vi) The first consideration is the compromise dated 15.03.1947 and compromise decree dated 25.03.1947, a translated copy thereof from Urdu to Hindi is annexed along with counter affidavit.

(vii) The translated version of compromise dated 15.03.1947 is mentioned hereinafter :-

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(viii) The translated version of compromise decree dated 25.03.1947 is mentioned hereinafter :-

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(ix) Hindi translation of Khewat No.13 and 19 are annexed as Annexure- 1 of counter affidavit wherein Ramlal s/o Shiv Sahai and Munshi s/o Saman were recorded being equal share of 3-3-18-5, however, in Khewat Nos. 13 and 19, name of only Ramlal s/o Shiv Sahai were mentioned and name of Munshi s/o Saman was not recorded as equal co-sharer.

(x) According to Hindi translation of name of Khatauni No. 1337, only name of Ramlal s/o Shiv Sahai was mentioned and name of Munshi s/o Saman was not recorded therein. Therefore, revenue records are not helpful to respondents.

(xi) Respondents' case now completely rest upon compromise decree dated 25.03.1947, which was based on compromise dated 15.03.1947. Hindi translations of both compromise and decree being part of counter affidavit is quoted in earlier paragraphs. I have carefully perused both documents. In compromise certain land of Khewat Nos. 13 and 19 are referred but I am not able to find out the details of land i.e. their exact Khasra Number. The details of revenue entries mentioned in compromise are not clear rather they are full of ambiguity. Land under compromise is not

identifiable, since except area and Khewat numbers no other details were mentioned, therefore, only on basis of compromise, it could not be held that land was ancestral as well as respondents have never tried to execute the compromise decree.

(xii) The oral evidence has been referred by the Appellate Authority in order dated 04/05/1989, that statement of original respondent, Deep Chand, Hargulal and Ram Swarup were considered, however, their statements were not found to be truthful since there were contradictions. Revisional Authority has not returned any finding on statement of witnesses.

(xiii) Parties have not filed copy of statements of witnesses. Counsel for respondents has failed to point out any error in finding returned by the Appellate Authority in regard to statements of witnesses.

(xiv) This Court by remitting the matter by order dated 26.11.1992 has observed about consideration of oral evidence, whether disputed land was part of Khewat No. 13 or Khewat No. 19 and effect of compromise decree.

(xv) As referred above oral evidence was considered by the Appellate court and does not found trustworthy being self-contradictory. There is no material or substantial argument to contradict above findings. Therefore, oral evidence are not sufficient to prove that land in dispute was ancestral.

(xvi) That from the contents of compromise decree land under compromise is not identifiable. Respondents have failed to execute the compromise for more than two decades. Therefore, claim based on compromise decree is also liable to be rejected.

(xvii) Counsel for the parties have not addressed the issue whether land in dispute was part of Khewat 14, 13 and 19 and it appears that there was no dispute that land in dispute falls under aforesaid Khewat.

6. Conclusion

(i) I have considered the material on record in the light of observation made by this Court and found that Respondents have failed to make out a case that land in dispute was a ancestral land.

(ii) The Revisional Authority has interfered with the order passed by the Appellate Authority without considering the factors enumerate under section 48 (1) of the U.P. Consolidation of Holdings Act, 1954, therefore, impugned order being erroneous is set aside.

(iii) Accordingly, the writ petition is allowed with no order as to costs.

Order Date :- August 16, 2023 Nirmal Sinha [Saurabh Shyam Shamshery, J.]